



Samahan Office of the Vice President and the 5th Student Assembly

The official legislative arm of the SAMAHAN.

SAMAHAN Act No. 009-2526

Introduced by:

Hon. Ken Ryle P. Hinojales

Hon. Mickyla Loraine Almadin

Authored by:

Naomi Grace Lanzo

AN ACT ESTABLISHING THE SAMAHAN STUDENT EMERGENCY RELIEF FUND (SSERF)

ARTICLE I

Preamble

SECTION 1

Short Title. This Act shall be known and cited as the "Atenean Disaster Relief Act of 2025".

SECTION 2

Declaration of Principles. The Samahan ng mga Mag-aaral ng Pamantasang Ateneo de Davao (SAMAHAN), in line with its commitment to promoting the welfare of all Ateneans, recognizes the need to provide financial assistance to students who are victims of natural disasters. This Act aims to establish a dedicated fund to ensure that Ateneans have access to immediate financial support in times of crisis, defined as any sudden or severe event that significantly threatens a student's safety, health, housing, or access to basic needs, including but not limited to natural disasters such as earthquakes, typhoons, floods, landslides, volcanic eruptions, and large-scale fires, and other unforeseen emergencies that substantially disrupt normal living conditions, upholding their right to safety and well-being.

SECTION 3

SDG Alignment. This Act aligns with Sustainable Development Goal 3 (Good Health and Well-being) by safeguarding the physical, mental, and emotional



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well-being of students affected by disasters and emergencies through the provision of immediate financial assistance. This reduces stress, prevents further harm, and supports recovery during times of calamity.

ARTICLE II Definition of Terms

For the purposes of this Act, the following terms are defined as follow:

- SECTION 1** **Natural Disasters.** Natural disasters refer to major adverse events resulting from natural processes of the Earth. This includes, but is not limited to, typhoons, earthquakes, floods, volcanic eruptions, landslides, and tsunamis.
- SECTION 2** **Ateneans.** Ateneans, for the purpose of this Act, shall refer exclusively to bonafide undergraduate students currently enrolled at the Ateneo de Davao University.
- SECTION 3** **University Community Engagement and Advocacy Council (UCEAC).** It refers to the duly constituted university body tasked with assessing, evaluating, and responding to community-related concerns and social welfare cases involving students. The UCEAC shall serve as the primary assessing and recommending body responsible for determining the eligibility of applicants for financial assistance under the SSFER bill, based on the nature and extent of the disaster or emergency experienced by the applicant.
- SECTION 4** **Immediate Disbursement.** It refers to the release of approved financial assistance within a clearly defined and expedited period following the determination of the applicant's eligibility and the completion of all required documentation, subject to the availability of funds.



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ARTICLE III

Establishment of the Fund

- SECTION 1** **Establishment of the Fund.** The SAMAHAN Student Assembly hereby establishes a SAMAHAN Student Emergency Relief Fund (SSERF), hereinafter referred to as the "Fund".
- SECTION 2** **Purpose.** The Fund shall be exclusively used to provide financial assistance to eligible Ateneans who are victims of natural disasters, ensuring that they have access to immediate support during challenging times. This assistance may cover expenses related to:
- Food and clean water;
 - Medical expenses, including medicine and therapy;
 - Replacement of essential academic materials;
 - Emergency cash assistance.
- SECTION 3** **Funding.** The Office of the SAMAHAN Treasurer must allocate 15,000 pesos every semester for the Fund. This allocation must be transferred to a dedicated DCB account for the Fund in the same semester.
- SECTION 4** **Fund Management.** In the event that the Fund is not fully utilized in a given semester, the remaining funds shall be rolled over to the next semester. The Office of the SAMAHAN Treasurer (OST) shall be responsible for the management and oversight of the Fund, ensuring transparency and accountability in its utilization.
- SECTION 5** **Minimum Fund Balance.** At all times, the Fund shall maintain a minimum balance of 5,000 pesos.



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SECTION 6

Fund Depletion and Restoration

- (a) In the event that the Fund balance falls below the minimum threshold of 5,000 pesos in a given semester, the Office of the SAMAHAN Treasurer shall temporarily halt the acceptance and processing of new applications for financial assistance.
- (b) The halt in application processing shall remain in effect until the Fund is restored to a balance exceeding the 5,000 pesos minimum threshold. This restoration shall typically occur at the beginning of the following semester when the allocation of the SAMAHAN semestral fund is added to the Fund.
- (c) Notwithstanding the provisions of (a) and (b) above, the 5,000 pesos minimum fund balance may be accessed for emergency relief assistance in exceptional circumstances. Such access shall require the written approval of the SAMAHAN President and Treasurer, provided that the Student Assembly is notified within 24 hours after its approval.

ARTICLE IV

Application and Assessment

SECTION 1

Application Process. An Atenean who is a victim of a natural disaster may apply to the Office of the SAMAHAN Treasurer to receive financial assistance from the Fund. The Office of the SAMAHAN Treasurer (OST) is given the discretion to craft the guidelines of the application process; provided, that applicants shall be required to submit supporting documents, including, but not limited to, a certification or assessment from the Student Services and Development Office (SSDO) and a barangay-issued



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certification or similar proof of impact from the local community, and; *provided* that the UCEAC shall assess the eligibility of the applicants for assistance at their own discretion. The UCEAC has the authority to request any documentation it deems necessary to assess an applicant's situation fully. The application process shall be made accessible in all SAMAHAN channels.

SECTION 2

Application Timeline. Affected Ateneans may apply for financial assistance immediately after the occurrence of a disaster or emergency, and applications shall be processed promptly upon submission to ensure timely support, and the disbursement of the approved assistance shall be made within two (2) to three (3) working days from the date the UCEAC issues a favorable eligibility determination and all required documents are duly submitted, unless prevented by circumstances beyond the control of the Office of the SAMAHAN Treasurer (OST). The Office of the SAMAHAN Treasurer (OST) shall prioritize such cases and may temporarily suspend applications only if the Fund falls below the minimum balance stated in Article III, Section 5, or if deemed necessary to ensure proper administration of resources.

SECTION 3

Assessment and Eligibility. The UCEAC shall be responsible for assessing the needs of applicants and determining their eligibility for financial assistance. The UCEAC shall maintain clear and transparent criteria for eligibility. The UCEAC shall interview the applicant, and the applicant must provide any documentation that the UCEAC deems necessary.

SECTION 4

Disbursement of Assistance. The role of the UCEAC is to assess whether the applicant is eligible or not and determine the amount of assistance to be given, considering the remaining funds available. The SSERF shall be disbursed only by the Office of the SAMAHAN Treasurer.



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ARTICLE V

Transparency and Accountability

- SECTION 1** **Transparency.** At all times, there shall be transparency and accountability in the management and utilization of the Fund.
- SECTION 2** **Data Privacy.** All personal and sensitive information submitted by applicants for assistance under this Act shall be treated with strict confidentiality and used solely for purposes of assessment and fund disbursement. Access to such information shall be limited to authorized officers of the Office of the SAMAHAN Treasurer (OST), the University Community Engagement and Advocacy Council (UCEAC), and relevant university offices. The processing and protection of personal data shall comply with the Data Privacy Act of 2012 (Republic Act No. 10173). Any unauthorized disclosure or misuse of information shall be subject to appropriate administrative action.
- SECTION 3** **Financial Reporting.** Every end of the semester, the financial report of the Office of the SAMAHAN Treasurer shall include the total amount of funds collected and disbursed, the number of students assisted, and the types of assistance provided. The financial report must be accessible online through SAMAHAN's official channels.
- SECTION 4** **Oversight Committee.** The Commission on Audit of the SAMAHAN shall regularly audit the Fund's financial records, investigate complaints or allegations of misuse, and report the findings and recommendations to the SAMAHAN Central Board and the Student Assembly.



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ARTICLE VI

Amendments

SECTION 1

Amendments. This Act may be amended by the succeeding student council or any duly authorized body after its adoption, based on the strengths and weaknesses observed in its implementation and application. Such amendments shall be pursued to improve the effectiveness, responsiveness, and relevance of the provisions of this Act, ensuring that it continues to serve the best interests and welfare of students.

ARTICLE VIII

Final Provisions

SECTION 1

Repealing Clause. All other laws, rules, or regulations contrary to or inconsistent with this Act are hereby repealed or modified accordingly.

SECTION 2

Separability Clause. If any part of this Act is declared unconstitutional, the remaining provisions shall continue in full force and effect.

SECTION 3

Effectivity. This Act shall take effect immediately upon its approval by the Student Assembly and publication in the official student government channels.

Approved this 9th Day of January, 2026.

APPROVED BY:

***Hon. Angela A. Miel**

Business and Management Cluster

Hon. Marc C. Andrei Macoto

Computer Studies Cluster



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Hon. Joshua Francisco Chua
Humanities and Letters Cluster

Hon. Lawrence Andre Calio
*Natural Science and Mathematics
Cluster*

Hon. Dylan Ruth Mayled
School of Engineering and Architecture

Hon. Maria Sophia B. Tancinco
School of Nursing

Hon. Mikaila Czarina Tolog
Social Sciences Cluster

Hon. Phoemela Alexandra D. Gawilan
Ateneo Lumad Students Organization

Hon. Wennin Jacob Bouda
International Students Representative

Hon. Ismael Tambuang
SALAM: The Ateneo Muslim Society

Hon. Jiesen Riexen Ferraren
*Protection of Women's Equality and
Rights Representative*

Hon. Charlaine Anthonette Funcion
Council of Class President Chairperson

** Permanent Officer-In-Charge Vote*

ATTESTED BY:

Hon. Ken Ryle "Judge" P. Hinojales
*Chairperson & Convener
5th SAMAHAN Student Assembly*

APPROVED:

Hon. Hannah O. Aquino
SAMAHAN President

Signed: January 11, 2026